

[doc. web n. 10110989]
Provision of January 16, 2025
Register of provisions
n. 6 of January 16, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, secretary general;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, Regulation);

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing
the Code regarding the protection of personal data
(hereinafter, Code);

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures with external relevance,
aimed at carrying out the tasks and
exercising the powers assigned to the Guarantor for the
protection of personal data, approved by
Resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter, Guarantor Regulation
No. 1/2019);

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the secretary
general pursuant to Article 15 of the Guarantor
Regulation No. 1/2000 on the organization and
functioning of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

Reporting Prof. Ginevra Cerrina Feroni;

PREMISE

1. Introduction.

In the context of a series of checks carried out
ex officio by this Authority, from a verification conducted
in XX it appears that the Municipality of Melito di Napoli
(hereinafter, Municipality) has not communicated the
contact details of the Data Protection Officer (hereinafter, DPO)
to the Authority – using the specific dedicated channel
available at the page [https://servizi.gpdp.it/
comunicazionerpd/s/](https://servizi.gpdp.it/comunicazionerpd/s/) – as required by Article 37, paragraph 7,
of the Regulation.

Furthermore, from a simultaneous check carried out on
the Municipality's official website, it was not
possible to find the contact details of the DPO, thus

not finding any elements capable of proving the designation, by the Municipality, of the DPO. Therefore, with a note dated XX (prot. n.XX), the Office, based on the elements acquired and the checks carried out, notified the Municipality, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, for failing to designate the DPO and for not publishing the contact details of the same nor having made the relevant communication to the Authority, in violation of Article 37, paragraphs 1 and 7, of the Regulation.

With the same note, the aforementioned holder was invited to submit defensive writings or documents to the Guarantor or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

In this regard, however, no defensive writings were received.

2. Outcome of the investigative activity.

Pursuant to Article 37 of the Regulation, the holder (and the processor) of the processing “[designates] systematically a data protection officer whenever: a) the processing is carried out by a public authority or by a public body, except for judicial authorities when performing their judicial functions” (paragraph 1, letter a)) and “publishes the contact details of the data protection officer and communicates them to the supervisory authority” (paragraph 7).

Furthermore, in the Guidelines on data protection officers (DPOs), adopted by the Article 29 Working Party on personal data protection on December 13, 2016, and amended on April 5, 2017, it is added that “Article 37, seventh paragraph, of the GDPR imposes on the controller or the processor the obligation to publish the contact details of the DPO, and to communicate the contact details of the DPO to the relevant supervisory authorities. These provisions aim to ensure that both the data subjects (inside or outside the entity/body controller or processor) and the supervisory authorities can contact the DPO easily and directly without having to go through another structure operating at the controller/processor” (paragraph 2.6).

The Guidance Document on the designation, position, and tasks of the Data Protection Officer (DPO) in the public sector, adopted by the Guarantor on April 29, 2021, with provision No. 186 (doc. web n. 9589104), specifies that “Regarding publication, this must be carried out on the administration's website, within a section easily recognizable by the user and accessible directly from the homepage, as well as within the section dedicated to the organization chart of the entity and the relevant contacts”, and that “Regarding communication

to the Authority, it is emphasized that the Guarantor has made available a specific online procedure not only for communication but also for the variation and revocation of the name of the designated DPO. This procedure represents the only contact channel that can be used for this specific purpose and is available at the page <https://servizi.gdpd.it/comunicazionerpd/s/>, where the specific instructions and the relevant FAQs are also provided: moreover, attention is drawn to the fact that... of the entities to correctly insert the required data, such as the identification of the data controller (the entity as a whole, and not the legal representative) and the completion of the tax code of the administration (and not the VAT number, or the tax code of another subject)” (par. 7).

In this specific case, given the failure to publish and communicate the contact details of the DPO to the Authority, the violation of Article 37, par. 7, of the Regulation is established. Furthermore, since it was not possible to obtain the contact details of the DPO, there are no elements to prove the actual designation of the DPO by the Municipality, in violation of Article 37, par. 1 of the Regulation.

Based on the assessments mentioned above, and in light of the absence of defensive writings from the Municipality, it is noted that it is impossible to overcome the observations notified by the Office with the initiation of the procedure, and they are insufficient to allow the archiving of the present procedure, as none of the cases provided for by Article 11 of the Garante Regulation No. 1/2019 apply.

Therefore, the preliminary assessments of the Office are confirmed, and the violation of Article 37, pars. 1 and 7, of the Regulation is noted due to the failure to designate and communicate the contact details of the DPO to the Authority.

It is noted, in any case, that the Municipality has proceeded to make the aforementioned communication following the initiation of the procedure by the Authority on XX (our prot. No. XX).

3. Corrective Measures (Article 58, par. 2, lett. d), of the Regulation).

Article 58, par. 2, of the Regulation grants the Garante the power to “order the data controller or the data processor to bring processing into compliance with the provisions of this regulation, if necessary, in a specific manner and within a specific timeframe” (lett. d)).

Taking note of what emerged during the investigation phase and considering the circumstance that, as illustrated in the previous paragraph 2, the publication of the contact details of the DPO on the institutional website has still not occurred, it is necessary, pursuant to Article 58, par. 2, lett. d), of the Regulation, to order the Municipality to adopt suitable measures to:

1) publish the contact details of the DPO on the institutional website (Article 37, par. 7 of the Regulation).

Pursuant to Articles 58, par. 1, lett. a), of the Regulation and 157 of the Code, the Municipality must also communicate to this Authority, providing adequately documented feedback, within thirty days from the notification of this provision, the initiatives undertaken to implement the above order pursuant to the cited Article 58, par. 2, lett. d), as well as any measures taken to ensure compliance of the processing with the data protection regulations.

4. Adoption of the injunction order for the application of the administrative pecuniary sanction (Article 58, par. 2, lett. i), and Article 83 of the Regulation; Article 166, par. 7, of the Code).

The Garante, pursuant to Article 58, par. 2, lett. i), and Article 83 of the Regulation, as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to the [other] corrective measures [referred to in this paragraph], or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the Board [of the Garante] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Garante’s website pursuant to Article 166, par. 7, of the Code” (Article 16, par. 1, of the Garante Regulation No. 1/2019).

In this regard, in the specific case, the violation of the cited provision is subject to the application of the administrative pecuniary sanction provided for by Article 83, par. 4, of the Regulation.

The aforementioned administrative pecuniary sanction, imposed based on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, par. 2, of the Regulation, regarding which the following observations are made.

The failure to publish and communicate the contact details of the DPO by the Municipality has negatively affected the ability of interested parties and the Authority to contact the DPO easily and directly; this, moreover, without providing elements to prove the actual designation of the DPO. In this regard, the Municipality, following the initiation of the procedure by the Authority, has communicated the relevant contact details to the Authority, but there is still a failure to publish the contact details of the DPO.

In favor of the Municipality, the absence of previous relevant violations committed or previous measures pursuant to Article 58 of the Regulation is noted.

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the pecuniary sanction at €4,000 (four thousand) for the violation of Article 37, pars. 1 and 7, of the Regulation as the administrative pecuniary sanction deemed, pursuant to Article 83, par. 1, of the Regulation, effective, proportionate, and deterrent.

It is also considered that the accessory sanction of publication on the Garante's website of this provision should be applied, as provided for by Article 166, par. 7, of the Code and Article 16 of the Garante Regulation No. 1/2019, as it concerns the failure to comply with an obligation that has become mandatory for more than six years.

It is finally considered that the prerequisites of Article 17 of the Garante Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE Garante pursuant to Article 57, paragraph 1, letter a), of the Regulation, declares the conduct of the Municipality of Melito di Napoli, described in the reasoning, to be unlawful, consisting of the violation of Article 37, paragraphs 1 and 7, of the Regulation;

ORDERS

the Municipality of Melito di Napoli, located at Via Salvatore di Giacomo No. 5, 80017 (NA) - CF 80050560632, pursuant to Article 58, paragraph 2, letter i), and Article 83 of the Regulation, to pay the sum of €4,000 (four thousand) as an administrative pecuniary sanction for the violation indicated in the reasoning. In this regard, it is noted that the violator retains the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction, within 30 days from the date of notification of this provision, pursuant to Article 166, paragraph 8, of the Code (see also Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011);

COMMANDS

the Municipality of Melito di Napoli:

- to pay the sum of €4,000 (four thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981;
- pursuant to Article 58, paragraph 2, letter d) of the Regulation, to publish the contact details of the DPO on the institutional website;
- pursuant to Articles 58, paragraph 1, letter a), of the Regulation and 157 of the Code, to communicate to this Authority, providing adequately documented feedback, within thirty days from the notification of this provision, the initiatives undertaken to implement the above orders pursuant to the cited Article 58, paragraph 2, letter d), as well as any measures taken to ensure compliance of the processing with the regulations on personal data protection.

DISPOSES

- pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of the injunction order on the Garante's website;
- pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Garante Regulation No. 1/2019, the publication of this provision on the Authority's website;
- pursuant to Article 17 of the Garante Regulation No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Article 78 of the Regulation, Article 152 of the Code, and Article 10 of Legislative Decree No. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, January 16, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Cerrina Feroni

THE SECRETARY GENERAL

Mattei